Republic of the Philippines
DEPARTMENT OF SCIENCE AND TECHNOLOGY
General Santos Avenue, Bicutan, Taguig, City

MEMORANDUM OF AGREEMENT

Program Title: **ACCELERATED R&D PROGRAM FOR CAPACITY BUILDING OF RESEARCH AND DEVELOPMENT INSTITUTIONS AND INDUSTRIAL COMPETITIVENESS: NICHE CENTERS IN THE REGIONS FOR R&D (NICER) PROGRAM: PILI RESEARCH AND DEVELOPMENT (R&D) CENTER**

Project Title: **Project 4: A Comprehensive PILI (*Canarium ovatum Engl.*) Information System Utilizing Web 2.0 Technologies: A Roadmap Towards KM Buildup**

KNOWN ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT is made and entered into by and between:

The **DEPARTMENT OF SCIENCE AND TECHNOLOGY** hereinafter referred to as "**Funding Agency**", a government entity duly existing and created under the laws of the Philippines with principal office address at General Santos Avenue, Bicutan, Taguig City, Philippines, represented herein by its Undersecretary for R&D, **ROWENA CRISTINA L. GUEVARA**;

The **PHILIPPINE COUNCIL FOR AGRICULTURE, AQUATIC AND NATURAL RESOURCES RESEARCH AND DEVELOPMENT (PCAARRD)** hereinafter referred to as "**Monitoring Agency**", a government entity and an attached agency of DOST, duly existing and created under the laws of the Philippines with principal office address at Timugan, Los Baños, Laguna, Philippines, represented herein by its Executive Director, **REYNALDO V. EBORA** for the monitoring of the above-stated **Program** as mandated by law;

-and-

The **PARTIDO STATE UNIVERSITY (PARSU)** hereinafter referred to as the "**Implementing Agency**", a public university, duly existing and created under the laws of the Philippines with principal office address at Rizal St, Goa, Camarines Sur, Philippines, represented herein by its President, **RAUL G. BRADECINA**, for the implementation of the above-mentioned program;

WITNESSETH:

WHEREAS, the above-mentioned research and development (R&D) program was approved by the DOST-EXECOM on 13 March 2019;

RAUL G. BRADECINA
President, ParSU

REYNALDO V. EBORA
Executive Director, PCAARRD

ROWENA CRISTINA L. GUEVARA
Undersecretary, DOST

NOW THEREFORE, for and in consideration of the foregoing premises, the PARTIES hereby agree to the following terms and conditions:

I. OBJECTIVES OF THE PROGRAM/PROJECTS

Program: **PILI RESEARCH AND DEVELOPMENT (R&D) CENTER**

General:

1. Develop and maintain efficient and comprehensive pili knowledge management system;
2. Characterize the genetic attributes of the existing pili varieties in Bicol and eventually identify the varieties with superior quality for propagation;
3. Develop improved pili nut postharvest processing technologies and facilities
4. Increase the yield and production of pilinut through the identification and utilization of superior quality planting materials, improvement of propagation and distribution system, development of various yield boosting technologies, and conduct of capability building activities for pili nut propagation and plantation establishment.

Specific:

1. Design and develop a comprehensive Pili Information System backend covering logical and physical database components;
2. Design, develop and implement the corresponding Pili Information System frontend incorporating collaborative social network functionalities, visual features, reports generation, and other components;
3. Deploy the Information System in a public IP address and domain name within the BCAARD premises;
4. Integrate Data Analytics and E-Commerce engines into the Information System and interface modules;
5. Establish guidelines, policies, protocols, procedures for the maintenance and operation of the system;
6. Conduct capability building activities/trainings on the stakeholders and BCAARRD staff;
7. Evaluate the Pili information system based on ISO 25010:2011 quality model;

II. OPERATION OF THE PROGRAM/PROJECTS

The Program shall be undertaken by the **Implementing Agency** in accordance with the approved program proposal (made part hereof as Annex "A") and the Revised DOST-GIA Guidelines (A.O. 009 S. of 2017) and shall be monitored by the **Monitoring Agency**.

RAUL G. BRADECINA
President, ParSU

REYNALDO [illegible]EBORA
Executive Director, BCAARRD

ROWENA CRISTINA L. G[illegible]YARA
Undersecretary, DOST

RAUL G. BRADECINA
President, ParSU

REYNALDO V. EBORA
Executive Director, PCAARRD

ROWENA CRISTINA L. GUEVARA
Undersecretary, DOST

III. FUNDING ASSISTANCE

The **Funding Agency** shall provide grant in the amount of **ONE MILLION ONE HUNDRED EIGHTY THREE THOUSAND ONE HUNDRED TWENTY ONE PESOS (₱1,183,121.00)** for Two (2) Years with Year 1 grant of **SEVEN HUNDRED TWENTY THREE THOUSAND FIVE HUNDRED SIXTY PESOS (₱723,560.00).** Of the said amount, **FOUR HUNDRED SEVENTY THOUSAND THREE HUNDRED TWELVE PESOS (₱470,312.00)** is chargeable against the CY 2019 DOST-GIA funds and the remaining budget shall be charged against the CY 2020 DOST-GIA funds. The grant shall be expended as allocated in the approved Project Line-Item Budget (made part hereof as Annex "B"). The Guidelines on the Grants-in-Aid Program shall govern the implementation of the Program.

The activities, operation of books of accounts and records of the Program shall be subject to reasonable inspection by authorized representatives of the **Funding Agency** and/or **Monitoring Agency**. The **Funding Agency** reserves the right to discontinue the Program or its assistance at any time for cause as determined by the **Funding Agency**, to include but not be limited to, violation of the Grant Agreements, fraud or falsity in the **Implementing Agency's** warranties and representation as provided by the proponent or upon determining that the results which were obtained or reasonably expected do not justify further activity.

All income/interest derived from the Program, if any, and all unexpended balance shall be reported immediately and remitted to the **Funding Agency** by the **Implementing and Monitoring Agencies** upon termination of the Program.

IV. PROGRAM/PROJECT DURATION

The Project shall be completed within a period of **TWO (2) YEARS with Year 1 covering the period 01 July 2019 to 30 June 2020.** The Parties shall agree on the starting date of implementation, which shall not be later than the date of receipt of funds by the **Implementing and Monitoring Agencies.**

V. FUND RELEASE AND UTILIZATION

The financial grant shall be released by the **Funding Agency** to the **Implementing Agency** and **Monitoring Agency**, subject to applicable rules and regulations and availability of funds.

The **Implementing Agency** shall abide by the applicable rules and regulations on disbursement and utilization as mandated by the **Funding Agency**, to include in particular but not be limited to, rules on direct and indirect costs.

VI. PROGRAM/PROJECT PROPERTIES

Program References: Mention of above-stated Program in any and all publication, literature and information material in whatever media form shall state reference to the DOST as **Funding Agency**, PCAARRD as **Monitoring Agency** and ParSU as **Implementing Agency**. Failure on the part of any party to comply with this provision shall be ground for written documented protest; further, repeated non-compliance with this provision by one party shall allow the aggrieved party to inform affected third parties in writing and require proper attribution through publication, with cost charged against the offending party.

Intellectual Property (IP): Ownership and utilization of IPs and Intellectual Property Rights (IPRs) resulting from the Program shall be governed by the Philippine Technology Transfer Act of 2009. The **Implementing Agency** and the Program Leader acknowledge that they have read, understood and hereby agree to be bound by the provisions of the said Act. In case of conflict with other laws, rules or regulations, the said Act shall prevail.

Records of Equipment: The Property Officer/s of the **Funding and Implementing Agency** shall maintain a complete and updated record of all equipment purchased out of the grant funds. Inventory of equipment shall be conducted by the **Monitoring Agency** during the implementation of the Program.

Ownership of Equipment: The **Funding Agency** shall initially own all equipment, including but not limited to the fabricated equipment, under its account until it may deem fit to transfer the same to other projects or implementing institutions, subject to existing government accounting and auditing rules. The **Implementing Agency** shall be accountable for the equipment duly receipted until the physical transfer/donation or disposition of ownership, as determined by the **Funding Agency**.

Upon request, the ownership of equipment may be transferred subject to the approval from **Funding Agency**. The **Funding Agency** reserves the right to transfer ownership of such government equipment subject to existing government accounting and auditing laws, rules and regulations.

VII. ACCOMPLISHMENT AND FINANCIAL REPORTS

The **Implementing Agency** shall submit to the **Monitoring Agency** all technical and financial reports as mandated by the **Funding Agency**, pursuant to applicable rules and regulations. The **Monitoring Agency** shall submit said reports together with their appraisal report to the **Funding Agency** within one (1) month after the receipt thereof. The **Implementing Agency** shall likewise acknowledge the assistance of the **Funding and Monitoring Agencies** in relevant project-related activities.

VIII. GENERAL PROVISIONS

Amendment: This Agreement may only be amended in writing and by mutual consent of both parties.

RAUL G. BRADECINA
President, ParSU

REYNALDO V. EBORA
Executive Director, PCAARRD

ROWENA CRISTINA L. GUEVARA
Undersecretary, DOST

Authority to Sign: Each person signing this agreement represents and warrants that he/she is duly authorized to sign this agreement. In the unlikely event that the person signing for the other party is not authorized to do so, the latter agrees to hold the other party/ies harmless for any cause or consequence of the absence/lack of authority to sign.

Arbitration: All disputes arising between and among the parties as to interpretation, operation or effect of any clause in the Agreement or any other difference between the parties shall first be resolved amicably. In case of failure, the Rules on Alternative Dispute Resolution (ADR) between national government agencies under Republic Act No. 9285 shall apply.

Indemnification: Each party shall indemnify, hold free and harmless, and defend at its own expense the other party/ies from and against all suits, claims, demands, and liabilities of any nature or kind, arising out of acts or omissions of the former, in the performance of any activity in connection with the Program, including those that may be initiated by its employees, workers, agents, subcontractors, or by any other entity or persons against said party by reason of or in connection to the Program.

Venue: The parties further agree that in case of legal action requiring court litigations that may arise in the enforcement of this Agreement, the venue of court litigation shall be in the Court of Competent Jurisdiction sitting in Taguig City only.

Separability Clause: If any part or provision of this Agreement is held invalid or unconstitutional, the other provisions not affected thereby shall remain in force and in effect.

IX. COMPLIANCE WITH LAWS AND POLICIES

The **Implementing Agency** shall comply with the provisions of the Philippine Technology Transfer Act of 2009 (Republic Act No. 10055) and its Implementing Rules and Regulations (Joint DOST-IPO Administrative Order No. 02-2010), Guidelines on Intellectual Property Valuation, Commercialization and Information Sharing (Joint DOST-DTI-IPOPHL A.O. No. 001 s. 2012), DOST Intellectual Property Policy (DOST A.O. No. 004 s. 2015), Technology Transfer Protocol (DOST A.O. No. 009 s. 2015), Intellectual Property Management Protocol (DOST A.O. No. 004 s of 2016), Guidelines on the Constitution of the Fairness Opinion Board (FOB) and the Issuance of Fairness Opinion Report (FOR) under R. A. No. 10055 (DOST Memorandum Circular No. 003 s. of 2015), Guidelines on the Fast-Tracked Issuance of FOR under R. A. No. 10055 (DOST M. C. No. 007, s. of 2016), Adoption of the DOST Data Sharing Policy (DOST A. O. No. 003 s. of 2015) and its Implementing Guidelines, the DOST Administrative Order No. 009 Series of 2017 (Revised DOST-GIA Guidelines) and other applicable laws, rules and policies.

IN CONSIDERATION of the mutual covenant set forth above, witness our signatures this _____ day of _____, 2019, at _____, Philippines

RAUL G. BRADECINA
President, ParSU

REYNALDO V. EBORA
Executive Director, PCAARRD

ROWENA CRISTINA L. GUEVARA
Undersecretary, DOST

Funding Agency:

DEPARTMENT OF SCIENCE AND TECHNOLOGY

ROWENA CRISTINA L. GUEVARA
Undersecretary for Research & Development

Monitoring Agency:

PHILIPPINE COUNCIL FOR AGRICULTURE, AQUATIC AND NATURAL RESOURCES RESEARCH AND DEVELOPMENT

REYNALDO V. EBORA
Executive Director

Implementing Agency:

PARTIDO STATE UNIVERSITY (ParSU)

RAUL G. BRADECINA
President

Witnesses:

Monitoring Agency:

EDNA A. ANIT
Supervising SRS, Crops Research Division, PCAARRD

Implementing Agency:

MARISSA N. ESTRELLA
Program Leader, BU

RONNEL R. ATOLE
Project 4 Leader, ParSU

Certified Funds Available:

HELEN V. GIANAN
Chief, DOST-Accounting Division

02-2019-04-1705 ParSU ₱ 458,666 - Y 1 / 2 Years
02-2019-08-1706 PCAARRD ₱ 5,648 - July 1, 2019 - June 30, 2021

RAUL G. BRADECINA
President, ParSU

REYNALDO V. EBORA
Executive Director, PCAARRD

ROWENA CRISTINA L. GUEVARA
Undersecretary, DOST

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES) S.S.
CITY OF TAGUIG

BEFORE ME, A Notary Public for and in TAGUIG C.TY this _____ day of 20 DEC 2019 personally appeared:

	Government Issued Identification	Date/Place Issued
ROWENA CRISTINA L. GUEVARA	S0016708A (Passport No.)	12 September 2019 DFA, Manila
RAUL G. BRADECINA	EC6518477 (Passport No.)	19 January 2016 DFA, Legazpi City
REYNALDO V. EBORA	S0005685A (Passport No.)	17 August 2017 DFA Manila

Known to me as the same persons who executed the foregoing instrument and they acknowledged to me that the same is their free and voluntary act and deed and that of the entities they respectively represent.

This instrument, consisting of eight (8) pages, including this page, whereon this Acknowledgment is written, signed by the parties together with their instrumental witnesses on each and every page thereof.

WITNESS MY HAND AND SEAL on the date and place first above written.

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Book No. XIX
Series of 2019

RACHEL GINAYA COPANUT-PANGWI
NOTARY PUBLIC UNTIL DEC. 31, 2019
Notarial Commission Appt. No. 19 (2018-2019)
#27 Gen. Santos Ave., Lower Bicutan, Taguig City
PTR NO. A-4248764/1-3-19, Taguig City
IBP O.R. No. 056215/12-06-18, RSM
MCLE Comp. No. VI-0019686/3-1-2019
ROLL NO. 61627